IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
COURT-IV

C.A. (CAA) NO. 96/ND/2025

Section 230-232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016

IN THE MATTER OF:

JEWELLOCK TREXIM PRIVATE LIMITED

...AMALGAMATING COMPANY NO. 1/APPLICANT COMPANY NO. 1

AND

SAHASHIJYOTI TEXTILES PRIVATE LIMITED

...AMALGAMATING COMPANY NO. 2/APPLICANT COMPANY NO. 2

AND

ALBERTA MERCHANTS PRIVATE LIMITED

...AMALGAMATED COMPANY/APPLICANT COMPANY NO. 3

Order Delivered on: 16.03.2026

CORAM:

SHRI MANNI SANKARIAH SHANMUGA SUNDARAM
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Mr. Rajeev Kumar, Advocate

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. The captioned application is a first motion application jointly filed by the applicant companies viz., M/s Jewellock Trexim Private Limited (hereinafter referred to as Amalgamating Company No. 1/Applicant Company No. 1) and M/s Sahashijyoti Textiles Private Limited (hereinafter referred to as Amalgamating Company No. 2/Applicant Company No. 2) and M/s Alberta Merchants Private Limited (hereinafter referred to as Amalgamated Company/Applicant Company No. 3) under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "Scheme").
2. Affidavit in support of the above application sworn by Mr. Saurabh Agarwal on behalf of Applicant Company No. 1, 2 and 3 Authorized Signatory/Director, on behalf of Applicant Companies, is filed. It is also represented that the registered office of all the applicant companies is in the NCT of Delhi and hence within the territorial jurisdiction of this Tribunal.
3. As has been stated in the application, the Amalgamating Company No. 1/Applicant Company No. 1 i.e., M/s Jewellock Trexim Private Limited

was incorporated on 10th March 1994, under the provisions of the Companies Act, 1956 bearing CIN: U51109DL1994PTC326264 having its registered office at 26, Barakhambha Road, Room No-1005 10th floor, Nirmal Tower, New Delhi, Delhi, India-110001. It is registered with the Reserve Bank of India as a non-deposit taking nonbanking financial company (NBFC) – Registration No. B-14.03428. The Authorized Share Capital of the Amalgamating Company No. 1/Applicant Company No. 1 is Rs. 2,00,00,000/- divided into 20,00,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Share Capital is Rs. 1,79,92,000/- divided into 17,99,200 Equity Shares of Rs. 10/- each. The Amalgamating Company No. 1 is engaged in holding investment in group companies.

4. The Amalgamating Company No. 2/Applicant Company No. 2 i.e., M/s Sahashijyoti Textiles Private Limited was incorporated on 27th October 1995, under the provisions of the Companies Act, 1956 bearing CIN: U51109DL1995PTC323820 having its registered office at 26, Barakhambha Road, Room No-1005 10th floor, Nirmal Tower, New Delhi, Delhi, India-110001. It is registered with the Reserve Bank of India as a non-deposit taking nonbanking financial company (NBFC) – Registration No. B-14.03524. The Authorized Share Capital of the Amalgamating Company No. 2/Applicant Company No. 2 is Rs. 2,72,00,000/- divided into 27,20,000 Equity shares of Rs. 10/- each.

The Issued, Subscribed and Paid-up Capital of Amalgamating Company No. 2 is Rs. 2,30,25,900/- divided into 23,02,590 Equity Shares of Rs. 10/- each. The Amalgamating Company No. 2 is engaged in holding investment in group companies.

5. The Amalgamated Company/Applicant Company No. 3 i.e., M/s Alberta Merchants Private Limited was incorporated on 10th March 1995, under the provisions of the Companies Act, 1956 bearing CIN: U51109DL1995PTC324541 having its registered office at 26, Barakhambha Road, Room No-1005 10th floor, Nirmal Tower, New Delhi, Delhi, India-110001. It is registered with the Reserve Bank of India as a non-deposit taking nonbanking financial company (NBFC) – Registration No. B-14.03531. The Authorized Share Capital of the Amalgamated Company/Applicant Company No. 3 is Rs. 1,63,20,000/- divided into 16,32,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Capital of Amalgamated Company is Rs. 1,27,14,000/- divided into 12,71,400 Equity Shares of Rs. 10/- each. The Amalgamated Company is engaged in holding investment in group companies.

6. The Amalgamating Company No. 1 and 2 as well as the Amalgamated Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their Audited Financial Statement for the year ended 31.03.2025.

7. The Board of Directors of the Applicant Companies i.e., Amalgamating Company No. 1 and 2 and Amalgamated Company, have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of Board Resolution of the respective companies dated 04.11.2025 have been placed on record.
8. The appointed date as specified in the Scheme is 1st April, 2025, or such other date as the Hon'ble National Company Law Tribunal may direct.

9. RATIONALE OF THE SCHEME

i. The Board of Directors of the Amalgamating Companies and the Amalgamated Company, consider that the Scheme would benefit the respective companies and their respective stakeholders on account of the following reasons:

a) Deriving synergies in the operation, administration, resource planning, productivity, and optimal utilization of existing resources including human capital.

b) Simplification of existing structure.

c) It will prevent duplication of expenses and overlapping of administrative responsibilities with respect to records, legal and regulatory compliances generally involved with running separate legal entities.

d) Greater efficiency in cash management and access to cash flow generated by the combined business which can be deployed more efficiently in discharging the consolidated liabilities of the group.

e) Alignment, coordination and streamlining of day-to-day management of all the companies.

f) Adhere to RBI regulations of holding one NBFC with similar business.

ii. The Amalgamating Companies and the Amalgamated Company are engaged in similar business activities i.e. holding investment in shares of group companies.

iii. The Scheme would, thus, have beneficial results for the Amalgamating Companies and the Amalgamated Company, their shareholders, and all concerned and will not be prejudicial to the interests of any concerned stakeholders

10. The applicant companies have annexed the certificate issued by the respective statutory auditors confirming that the accounting treatment in the Scheme is in compliance with the accounting standards prescribed by the Central Government under Section 133 of the Companies Act, 2013 by the respective companies.

11. With respect to Amalgamating Company No. 1, the captioned application discloses that:

a) The Company has 1 (One) Equity Shareholder as on 31.03.2025. The list of equity shareholder as reflected in the financial statement of the company certified by the auditor is annexed with the application. The Board Resolution consenting to the scheme is filed.

b) The Company has nil Secured Creditors as on 31.10.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

c) The Company has nil Unsecured Creditors as on 31.10.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

d) In relation to the Equity Shareholder, it seeks dispensing with convening/holding the meeting as consent from the shareholder is placed on record. Since there are no Secured or Unsecured Creditors, therefore the necessity of convening and holding a meeting does not arise.

12. With respect to Amalgamating Company No. 2, the captioned application discloses that:

a) It has 1 (One) Equity Shareholder as on 31.03.2025. The list of equity shareholder as reflected in the financial statement of the company certified by the auditor is annexed with the application.

The respective consent by way of affidavit by equity shareholder is also annexed with the application.

b) The Company has nil Secured Creditor as on 31.10.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

c) The Company has nil Unsecured Creditor as on 31.10.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

d) In relation to the Equity Shareholder, it seeks dispensing with convening/holding the meeting as consent from the shareholder is placed on record. Since there are no Secured or Unsecured Creditors, therefore the necessity of convening and holding a meeting does not arise.

13. Regarding the Amalgamated Company, the applicants have averred that:

a) The Company has 1 (One) Equity Shareholder as on 31.03.2025. The list of equity shareholder as reflected in the financial statement of the company certified by the auditor is annexed with the application. The respective consent by way of affidavit is also annexed with the application.

b) The Company has nil Secured Creditors as on 31.10.2025. Certificate by Chartered Accountants certifying the same is annexed with the application.

c) The Company has nil Unsecured Creditors as on 31.10.2025. Certificate from Chartered Accountants certifying the same is annexed.

d) In relation to the Equity Shareholder, it seeks dispensing with convening/holding the meetings as consent of the shareholder is placed on record. Since there are no Secured or Unsecured Creditors, therefore the necessity of convening and holding a meeting does not arise.

14. The applicant companies have annexed an affidavit u/s 230(2) of Companies Act, 2013 affirming that no proceeding for inspection, inquiry or investigation under the provisions of the Companies Act, 2013, or under any other law is pending against any of the Applicant Companies. Further, no legal proceeding is pending against the Applicant Companies and there is no other Sectoral Regulator or Regulatory Authority which may have significant bearing on the operations of the Applicant Companies. None of the Applicant Companies is regulated or governed by the Securities and Exchange Board of India (SEBI), the Competition Commission of India (CCI) or any other Sectoral Regulator or Regulatory Authority. Hence, notice of

the Scheme of Amalgamation is not required to be served on the SEBI, the CCI, or any other Sectoral Regulator or Regulatory Authority.

15. The applicant companies are registered as NBFCs, hence, in relation to the Reserve Bank of India (RBI), the applicant companies have contended that they are not required to secure prior approval of RBI for the present scheme as they do not fall under any of the conditions under Regulation 42 of Master Direction - Reserve Bank of India (RBI) (Non-Banking Financial Company - Scale Based Regulation) Directions, 2023) where prior approval is required.

16. In the wake of the averments made in the application and the documents filed therewith, the following directions are issued qua convening/holding or dispensing with the meetings of the Equity Shareholders, Secured and Unsecured Creditors.

A. In relation to the Amalgamating Company No. 1/Applicant Company No. 1:

a) <u>With respect to Equity Shareholder:</u> In view of consent through a Board Resolution from the single equity shareholder, convening/holding the meeting of shareholders is dispensed with.

b) <u>With respect to Secured Creditors:</u> Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

B. In relation to the Amalgamating Company No. 2/Applicant Company No. 2:

a) With respect to Equity Shareholder: In view of consent affidavit from the Equity Shareholder, convening/holding the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

C. In relation to the Amalgamated Company/Applicant Company No. 3:

a) With respect to Equity Shareholder: In view of consent affidavit from the Equity Shareholder, convening/holding of the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity convening/holding any such meeting does not arise.

17. Notice of this application shall also be served on the following:

i. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Paryawaran Bhawan, CGO Complex, New Delhi-110003

ii. Registrar of Companies at 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110019

iii. Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-110001

iv. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

v. Reserve Bank of India

vi. Any other sectoral regulators required to be served

18. The Application i.e., **C.A. (CAA) No. 96 of 2025 stands allowed** on the aforesaid terms and accordingly disposed of.

Sd/-	**Sd/-**
(ATUL CHATURVEDI)	**(MANNI SANKARIAH SHANMUGA SUNDARAM)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**